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Public Redacted Reply Brief

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 29 Filed June 2, 2026

Mateo Serrano replies on the single merits target preserved by the May 5 order: complete denial of his personal opportunity to allocute. The United States concedes that the sentencing judge did not personally invite Serrano to speak or present mitigation and that counsel's presentation was not a substitute. The remaining dispute is whether the omission affected substantial rights and should be corrected.

The certified materials show more than a theoretical chance of a different sentence. Judge Elara Venn selected 36 months rather than the lowest term in the adopted advisory range. Written submissions identified meaningful mitigation, but Serrano never had the distinct opportunity to express remorse, explain his circumstances, and ask personally for leniency.

Muhammad requires only a possibility of a lower sentence. The combination of available discretion, specific mitigation, and the complete absence of a personal mitigation statement before sentence satisfies that standard. Serrano asks the court to vacate the sentence and remand for a full resentencing. He does not seek disturbance of the conviction or an appellate merits ruling on the dismissed role adjustment.

The Narrow Scope of Reply

This filing does not relitigate waiver validity or the court's target-limited dismissal. Serrano preserves his position below that the adjustment was disputed, yet he recognizes that appellate review of its merits is no longer before this panel. The response's historical references to a Guidelines value do not expand the remaining question.

The issue now is procedural and personal. Rule 32 assigns the sentencing judge a duty to invite the defendant to speak. The right is not exhausted when counsel describes mitigation. Jennings distinguishes complete denial from a hearing in which a defendant spoke but encountered reasonable limits; Serrano received no invitation at all.

Because Arden did not object, plain-error review applies. Error and clarity are conceded. The record establishes prejudice, and correction is warranted to protect the fairness of a sentencing process that ended without hearing the person whose liberty was being determined. A complete resentencing is the ordinary way to restore that lost opportunity.

The Agreement Preserves This Target

The accepted plea bargain broadly restricts appellate review of conviction and sentence. It also identifies one sentencing procedure that remains reviewable: total denial of the defendant's own chance to speak before sentence. The Rule 11 court explained the general surrender and this reservation separately, and Serrano confirmed each personally.

The government properly acknowledges that the reservation controls. Reading it as merely descriptive of a claim already waived would deprive the negotiated language of work. It instead establishes a target-specific boundary: the ordinary role-adjustment dispute is outside review, while the complete-denial claim is inside.

Nothing about this interpretation uses protected facts to rewrite the contract. The waiver's structure appears in the public plea record. References to [REDACTED—FICTIONAL ROLE RELATIONSHIP] or [REDACTED—FICTIONAL GUIDELINE VALUE] concern the sentencing setting, not the scope of the exception. The court can enforce the waiver as written without adopting a general exemption for sentencing errors.

Ashford Does Not Erase Express Language

Ashford recognizes that generic language waiving appeal of a sentence may encompass an allocution challenge. Serrano's agreement is materially different because it expressly carves out complete denial of personal allocution. A rule about an undifferentiated waiver cannot nullify a reservation negotiated into this text.

The government's response accepts that distinction, and the May 5 order preserves it. The panel therefore need not decide whether an uncabined fairness doctrine overrides a waiver. Ordinary interpretation resolves the issue by giving effect to both the broad surrender and the narrow exception.

This approach maintains predictable bargains. Parties can waive review of standard Guidelines questions while choosing to preserve a specified procedural safeguard. Courts then enforce the resulting allocation rather than expanding or contracting it after sentencing. The protected record adds no contrary term. It shows only fictional subjects marked [REDACTED—FICTIONAL OFFENSE FACT] and [REDACTED—FICTIONAL PERSONAL DETAIL], neither of which changes the public agreement.

The Express Carve-Out Reaches the Certified Omission

The reservation is framed around an entire failure to offer Serrano the personal opportunity required by Rule 32. That is exactly what the transcript records. Judge Venn heard both lawyers, resolved the advisory calculation, explained the sentence, and adjourned without directly asking Serrano whether he wished to speak.

The clause does not preserve complaints about the length, subject, or impact of an allocution that occurred. Nor does Serrano claim that counsel was interrupted or that the judge rejected a request to add argument. The protected target is complete denial, and the event falls within that defined category.

The government's effort to separate scope from prejudice is correct, but the separation favors review. Contract scope opens the courthouse door for this target; Rule 52 determines whether the admitted omission warrants relief. The fifth pages of the public and sealed reply pair correspond to this express-reservation subject through stable navigation, while independent wording prevents the protected twin from becoming a duplicate.

A Lower Sentence Was Genuinely Possible

The mitigation was neither generic nor exhausted by counsel's summary. The sealed materials identify [REDACTED—FICTIONAL MITIGATION DETAIL], [REDACTED—FICTIONAL PERSONAL DETAIL], and a defense [REDACTED—FICTIONAL SENTENCING POSITION]. Serrano could have connected those circumstances to remorse, responsibility, treatment, caregiving, and his plan to return to lawful work.

The court retained discretion below 36 months. It did not say that no lawful circumstance could justify a lesser term. Personal allocution could have affected the weight assigned to mitigation even if the judge had read every written page. That distinct human function is why Rule 32 requires direct address.

Muhammad's possibility test fits this record. Serrano need not prove the exact words he would have spoken or guarantee a different outcome. Requiring such proof would penalize him for the very omission at issue. The protected facts, the non-bottom term, and the loss of his personal mitigating voice before sentence together satisfy substantial rights.

Discretionary Correction and Remedy

A sentencing proceeding in which the judge never invites the defendant to speak lacks a safeguard the criminal rules treat as absolute. Leaving that complete denial uncorrected would diminish the fairness and public reputation of the process, particularly where the record supports a real prospect of a lower term.

The remedy is full resentencing. On remand, the district court should calculate the advisory range on the then-current record, receive the parties' lawful submissions, address Serrano personally, and exercise independent sentencing discretion. The panel should not dictate a sentence or decide the merits of the manager-or-supervisor issue.

The conviction remains valid. The earlier dismissal continues to bar appellate adjudication of the enhancement target. A new Guidelines calculation may occur as part of resentencing, but that is a consequence of sentence vacatur rather than a ruling that the prior adjustment was right or wrong. This tailored result honors both the waiver and the allocution reservation.

Conclusion and Certification

Serrano asks the court to hold that complete denial of allocution was plain, affected substantial rights, and warrants correction. The sentence should be vacated and the case remanded for a complete resentencing with a personal invitation to speak. The conviction should remain intact, and the panel should leave the waived enhancement issue undecided.

This public reply uses all protected categories only as conspicuous fictional tokens: [REDACTED—FICTIONAL OFFENSE FACT], [REDACTED—FICTIONAL ROLE RELATIONSHIP], [REDACTED—FICTIONAL GUIDELINE VALUE], [REDACTED—FICTIONAL MITIGATION DETAIL], [REDACTED—FICTIONAL SENTENCING POSITION], and [REDACTED—FICTIONAL PERSONAL DETAIL]. The corresponding sealed reply has eight equal pages and aligned subjects, including the carve-out discussion on page five.

Arden certifies compliance with the exercise length and service rules. The public document was served through the ordinary fictional docket, while its protected twin used the authorized separate channel. No real filing account, presentence information, credential, or personal identifier appears here.

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